

21STCV02534 21STCV02534

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-09-15

Motion: PLAINTIFF'S MOTION FOR PROTECTIVE ORDER

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Case Number: 21STCV02534 Hearing Date: September 15, 2026 Dept: W

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

BRUCE KELLY, an individual,

Plaintiffs,

vs.

WESTFIELD TOPANGA OWNER LLC, a

Delaware limited liability company;

WESTFIELD DDC, LLC; CSI ELECTRICAL

CONTRACTORS, INC. and DOES 1 through

50, inclusive,

Defendants.

CASE NO: 21STCV02534

[TENTATIVE] ORDER RE:

PLAINTIFF'S MOTION FOR PROTECTIVE ORDER

Dept. W

8:30 a.m.

September 15, 2026

[TENTATIVE] ORDER: The Court GRANTS Plaintiff's request for a protective order as to the August 4, and August 19 examinations unilaterally scheduled by Defendants. The Court explicitly does not grant this protective order as to these examinations in general. The Court also schedules an OSC Re: Subsequent Examination Scheduling for October 12, 2026. Finally, the Court DENIES Plaintiff's request for sanctions.

Background

This is a negligence and premises liability case. Plaintiff is Bruce Kelly, an employee of Commercial Tech Services (CTS), an electrical subcontractor. Plaintiff's employer was hired by Defendant CSI as a subcontractor, installing electrical wiring for a modification at the Westfield Topanga mall. Defendant CSI, in turn, was hired by Defendant Westfield Topanga Owner, LLC as the general contractor on the project. The remaining Defendant in this case is Westfield DDC, LLC.

Plaintiff alleges that on January 24, 2020, he fell off a ladder while installing wiring in the walls. As he fell, Plaintiff hit his head on the concrete floor, knocking him unconscious.

On January 21, 2021, Plaintiff brought suit against Defendants alleging negligence, premises liability, and product liability.

In early 2022, Plaintiff was examined by both a neurologist and neuropsychologist.

In March of 2023, this Court granted Defendants Motion for Summary Judgment. Plaintiff successfully appealed this order, and in 2025, the case was remanded back to this Court.

On July 8, 2026, following meet and confer efforts, Defendants unilaterally noticed a subsequent physical and mental examination of Plaintiff.

Plaintiff now moves for a protective order as to both requests.

Discussion

i)

Protective Order

Plaintiff moves for a protective order as to Defendants' request for a subsequent neurological examination of Plaintiff by Dr. Edwin Amos, as well as to Defendants' request for a

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subsequent neuropsychological examination of Plaintiff by Dr. David Lechuga. (Mot. for Protective Order, pp. 5:25-6:4.)

Plaintiff argues that these requests are improper as Defendants did not request leave to conduct these examinations. Under CCP § 2032.310, “[i]f any party desires to obtain discovery by a physical examination other than that described in Article 2 (commencing with Section 2032.210), or by a mental examination, the party shall obtain leave of court.” (CCP § 2032.310(a).) In other words, a party must obtain leave of court to request a subsequent physical or mental examination. (Carpenter v. Superior Court (2006) The court, “shall grant a motion for a physical or mental examination under Section 2032.310 only for good cause shown.” (CCP § 2032.320(a).)

Here, Plaintiff has already undergone both a physical and mental examination by doctors Edwin Amos and David Lechuga. (Henriks Decl. ¶ 2.) Thus, per CCP § 2032.310(a), Defendants needed to request leave of court to request a subsequent examination. Defendants did not request leave. For these reasons, the Court agrees that these demands are void.

In their Opposition, Defendants assert that there is good cause for these subsequent examinations. First, Defendants point out that it has been four years since the initial examinations of Plaintiff. (Opp. p. 5:13-15.) Additionally, Defendants note that Plaintiff has characterized their own condition as “deteriorating”. (Id. p. 16-18.) Given the long length of time between the original examinations of Plaintiff and now, as well as Plaintiff’s deteriorating condition, the Court agrees that there is good cause for these subsequent examinations to proceed.

Additionally, in a parallel motion, Plaintiff argued that Defendants should be denied the right to depose him personally, because the topic of his health is better addressed by experts. Here, however, Plaintiff moves to prevent experts from examining his physical and mental health. The

Court does not believe that Plaintiff can request relief from both of these discovery avenues simultaneously. Thus, the Court finds these examinations are likely proper.

That being said, this is a motion for a protective order, not a motion for leave to conduct subsequent examinations. Defendants cannot use their Opposition to transmute one motion into another. The ultimate question here is whether Defendants properly moved for leave as to these examinations. The Court has found that they haven’t. Therefore, the Court GRANTS Plaintiff’s request for a protective order as to the August 4, and August 19 examinations unilaterally scheduled by Defendants. The Court explicitly does not grant this protective order as to these examinations in general.

As explained above, the Court agrees that there is good cause for these examinations. The Court strongly encourages the parties to work together informally to reach a mutually agreeable time for these examinations to take place. In order to ensure this collaboration, the Court schedules an OSC Re: Subsequent Examination Scheduling for October 12, 2026. The Court expects the parties to have scheduled mutually agreeable dates for these examinations by then.

ii)

Sanctions

Plaintiff also requests sanctions against Defendants for opposing this protective order. (Mot. for Protective Order, p. 7:4-18.)

Under CCP § 2017.020, “[t]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP § 2017.020(b).)

As explained above, the Court believes that Defendants’ request for subsequent examinations was procedurally improper but correct on the merits. Thus, the Court finds Defendants acted with substantial justification in opposing this motion, and that the circumstances make the imposition of sanctions here unjust. Therefore, the Court denies Plaintiff’s request for sanctions.

Conclusion

The Court GRANTS Plaintiff’s request for a protective order as to the August 4, and August 19 examinations unilaterally scheduled by Defendants. The Court explicitly does not grant this protective order as to these examinations in general.

The Court also schedules an OSC Re: Subsequent Examination Scheduling for October 12, 2026.

IT IS SO ORDERED, Plaintiff TO GIVE NOTICE.

September 15, 2026

Judge of the Superior Court

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

BRUCE KELLY, an individual,

Plaintiffs,

vs.

WESTFIELD TOPANGA OWNER LLC, a

Delaware limited liability company;

WESTFIELD DDC, LLC; CSI ELECTRICAL

CONTRACTORS, INC. and DOES 1 through

50, inclusive,

Defendants.

CASE NO: 21STCV02534

[TENTATIVE] ORDER RE:

PLAINTIFF'S MOTION TO ENFORCE PARTIES' JOINT STIPULATION

Dept. W

8:30 a.m.

September 15, 2026

[TENTATIVE] ORDER: The Court GRANTS Plaintiff's motion to enforce the April 13, 2026, joint stipulation as to the 21 stipulated subpoena custodians. The Court also GRANTS Plaintiff's request for discovery sanctions in the modified amount of \$1,050.00.

Background

This is a negligence and premises liability case. Plaintiff is Bruce Kelly, an employee of Commercial Tech Services (CTS), an electrical subcontractor. Plaintiff's employer was hired by

Defendant CSI as a subcontractor, installing electrical wiring for a modification at the Westfield Topanga mall. Defendant CSI, in turn, was hired by Defendant Westfield Topanga Owner, LLC as the general contractor on the project. The remaining Defendant in this case is Westfield DDC, LLC.

Plaintiff alleges that on January 24, 2020, he fell off a ladder while installing wiring in the walls. As he fell, Plaintiff hit his head on the concrete floor, knocking him unconscious.

On January 21, 2021, Plaintiff brought suit against Defendants alleging negligence, premises liability, and product liability.

On February 24, 2026, Defendants served Plaintiff with 83 third-party subpoenas for the production of various medical records.

On March 25, 2026, Plaintiff objected to all 83 subpoenas.

On April 13, 2026, the parties entered into a joint stipulation. Plaintiff agreed to withdraw all 83 objections to these third-party subpoenas, and Defendants agreed that they would provide Plaintiff with copies of all of these documents at no cost. The Court granted this stipulation on April 15, 2026.

Now, Plaintiff moves to enforce this joint stipulation.

Discussion

i)

Motion to Enforce Stipulation

Plaintiff moves to enforce the terms of the April 13, 2026, joint stipulation as to the third-party subpoenas for medical information. (Mot. to Enforce Stipulation, p. 6:16-24.)

Under the terms of the April 13, 2026, stipulation, Plaintiff agreed to withdraw his objections to 83 third-party subpoenas, “on the condition that Defendants provide Plaintiff’s

counsel with all copies of all documents produced pursuant to the subpoenas within five (5) days of receipt at no cost to Plaintiff.” (Joint Stipulation Order, 4/15/26.)

According to Plaintiff’s notice of narrowed scope, Plaintiff specifically moves to compel Defendant into providing copies of the following twenty-one subpoena documents: 1. Claremont Imaging Associates (Radiology Records); 2. Doctors of Hearing, Inc.; 3. University Spine and Orthopedics; 4. Vincent L. Gumbs, M.D.; 5. Michael Klein, M.D.; 6. Ved Prakash, M.D.; 7. Stanley G. Katz, M.D.; 8. Patricia Penny-Fichtner, LVN; 9. Jin Lee, M.D.; 10. Andrew Hsiao, M.D.; 11. Dr. Paul Gilbert; 12. UCLA Health Systems (Medical Records); 13. UCLA Health, HIT Team (Billing Records); 14. UCLA Health (Radiology Records); 15. UC Irvine Medical Center (Medical Records); 16. Marcia R. Gump, MFT; 17. Martin Levine, M.D.; 18. Medata, Inc.; 19. Collage Rehabilitation Partners; 20. Gordon Tam, M.D.; 21. Uthaiiah Kokkalera, M.D. (Notice of Narrowed Scope, p. 2:12-20.)

Under CCP § 2016.030, parties “may by written stipulation modify the procedures provided by this title for any method of discovery.” (CCP § 2016.030.) Moreover, “both the court and the opposing litigants must be able to rely upon the validity of stipulated resolutions of discovery disputes and to have them enforceable by order.” (Young v. Rosenthal (1989) 212 Cal.App.3d 96, 117.) Thus, “[a] stipulation in proper form is binding upon the parties if it is within the authority of the attorneys.” (Bowden v. Green (1982) 128 Cal. App. 3d 65, 72.) Based on this case law, the Court has both the power and the obligation to enforce this stipulation.

Here, Plaintiff has provided evidence of a valid stipulation agreement and has asserted that Defendant has failed to comply with this agreement as to 21 of the 83 relevant subpoenas. (Henriks Decl. Ex. A; see also, Henriks Decl. ¶ 5.) As explained above, litigants must be able to rely on the validity of discovery stipulations. Thus, the Court is inclined to grant this motion.

Notably, Defendants never filed an Opposition. This appears to be a clerical mistake rather than a strategic one, as Plaintiff’s Reply addresses arguments supposedly raised in opposition to this motion. (See, e.g., Reply, p. 3:27-28.) Given that Defendants never filed this Opposition, the Court will not consider it.

For these reasons, the Court GRANTS Plaintiff's motion to enforce the April 13, 2026, joint stipulation as to the 21 stipulated subpoena custodians.

ii)

Sanctions

Additionally, Plaintiff requests \$7,800.00 in discovery sanctions for misuse of the discovery process.

Under CCP § 2023.030(a), "[t]he court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. . . . If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (CCP § 2023.030(a).)

Under CCP § 2023.010, disobeying a court order to provide discovery amounts to a misuse of the discovery process. (CCP § 2023.010(g).) And, under California case law, a granted stipulation is tantamount to a court order. (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal. App. 4th 262, 279.) Moreover, there are no facts to suggest that Defendants acted with substantial justification, as Defendants never filed their Opposition. Thus, the Court agrees that sanctions are appropriate.

However, the Court finds Plaintiff's requested amount unreasonable. Plaintiff's attorney estimates her reasonable fees at \$7,800.00 – based on an estimated 12 hours of work, billed at \$650

an hour. (Henriks Decl. ¶ 8.) Given the simplicity of this motion, the Court does not find that either 12 hours of work, or an hourly rate of \$650 an hour is reasonable. This was a simple motion to enforce a stipulated discovery agreement between the parties.

"[T]he court's discretion in awarding attorney fees is ... to be exercised so as to fully compensate counsel for the prevailing party for services reasonably provided to his or her client." (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 395 [emphasis added].) The trial court may reduce the award where the fee request appears unreasonably inflated, such as where the attorneys' efforts are unorganized or duplicative. (*Serrano v. Unruh* (1982) 32 Cal.3d 621, 635, fn. 21.) Moreover, courts have repeatedly stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom, and this includes the determination of the hourly rate that will be used in the lodestar calculus. (*East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 436-437.)

Given the simplicity of this motion, the Court will exercise its discretion and reduce Ms. Henriks' hourly rate to \$350 an hour, and reduce the hours requested to 8. This brings Plaintiff's total reasonable fees to \$2,800.00.

For these reasons, the Court GRANTS Plaintiff's request for discovery sanctions in the modified amount of \$2,800.00.

Conclusion

The Court GRANTS Plaintiff's motion to enforce the April 13, 2026, joint stipulation as to the 21 stipulated subpoena custodians. The Court also GRANTS Plaintiff's request for discovery sanctions in the modified amount of \$2,800.00.

IS SO ORDERED, Plaintiff TO GIVE NOTICE.

September 15, 2026

Judge of the Superior Court

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

BRUCE KELLY, an individual,

Plaintiffs,

vs.

WESTFIELD TOPANGA OWNER LLC, a

Delaware limited liability company;

WESTFIELD DDC, LLC; CSI ELECTRICAL

CONTRACTORS, INC. and DOES 1 through

50, inclusive,

Defendants.

CASE NO: 21STCV02534

[TENTATIVE] ORDER RE:

DEFENDANTS' MOTION FOR LEAVE TO TAKE SUBSEQUENT DEPOSITION OF PLAINTIFF BRUCE KELLY

Dept. W

8:30 a.m.

September 15, 2026

[TENTATIVE] ORDER: The Court TENTATIVELY DENIES Defendants' Motion for Leave to Take Subsequent Deposition of Plaintiff. In the alternative, the Court GRANTS the motion but limits the deposition to the topics of Plaintiff's daily functional limitations and potentially his employment history. The duration of this deposition is also limited to 1.5 hours

Background

This is a negligence and premises liability case. Plaintiff is Bruce Kelly, an employee of Commercial Tech Services (CTS), an electrical subcontractor. Plaintiff's employer was hired by Defendant CSI as a subcontractor, installing electrical wiring for a modification at the Westfield Topanga mall. Defendant CSI, in turn, was hired by Defendant Westfield Topanga Owner, LLC as the general contractor on the project. The remaining Defendant in this case is Westfield DDC, LLC.

Plaintiff alleges that on January 24, 2020, he fell off a ladder while installing wiring in the walls. As he fell, Plaintiff hit his head on the concrete floor, knocking him unconscious.

On January 21, 2021, Plaintiff brought suit against Defendants alleging negligence, premises liability, and product liability.

In March of 2022, Plaintiff was deposed for the first time. Then, in July of 2022, Plaintiff was deposed an additional time. Cumulatively, Plaintiff has been deposed for 5.5 hours.

In March of 2023, this Court granted Defendants Motion for Summary Judgment. Plaintiff successfully appealed this order, and in 2025, the case was remanded back to this Court.

Now, Defendants request leave to once again depose Plaintiff.

Discussion

Defendants request leave to depose Plaintiff for a second¹ time. (Mot. for Leave, p. 1:3-6.)

Under CCP § 2025.610, "[o]nce any party has taken the deposition of any natural person, including that of a party to the action, neither the party who gave, nor any other party who has been served with a deposition notice pursuant to Section 2025.240 may take a subsequent

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deposition of that deponent." (CCP § 2025.610(a).) Thus, the general rule is that a natural person can only be deposed once. However, "for good cause shown, the court may grant leave to take a subsequent deposition." (CCP § 2025.610(a).

Here, Defendants argue there is good cause for a further deposition of Plaintiff, as nearly four years have passed since he was initially deposed, and the facts surrounding Plaintiff's damages have evolved since then. (Mot. for Leave, p. 1:7-14.)

Defendants argues that this deposition will be limited in scope to the following topics: 1) the factual bases for Plaintiff's updated and expanded damage contentions as reflected in his recent responses to Special Interrogatories, Set Two; 2) Plaintiff's current subjective symptoms and functional limitations; and 3) Plaintiff's employment history and functional capacity during the time period between his last deposition and now. (Id. p. 1:18-21.)

i)

New Discovery Responses

Defendants' first argument is that, on June 3, 2026, Plaintiff provided responses to Special Interrogatories, Set Two. (Id. p. 5:5-6.) Therein, Plaintiff apparently expanded the scope of the damages he claims to have suffered. (Id. p. 5:8-17.) Defendants provide a copy of Plaintiff's responses to these SROGs. (Ross Decl. Ex. E.) However, Defendants do not point to or cite any specific answer from Plaintiff that went beyond the scope of their initial claims. (See Mot. for Leave, p. 5:5-25.) Having reviewed Plaintiff's responses, the Court notes that Plaintiff's responses to questions about their damages appear to direct Defendants to medical records that have already been produced, as well as point out that this information will be provided via expert disclosure. (See e.g., Ross Decl. Ex. E, p. 12:11-18.) Thus, unless Defendants can point to a more specific expansion of Plaintiff's earlier claim for damages, the Court does not find this argument compelling.

Additionally, the Court has other reasons to believe that Plaintiff's responses to these interrogatories are not actually relevant to Defendants' request. Defendants began the process of requesting this subsequent deposition before Plaintiff even submitted these responses. Plaintiff's responses to these interrogatories were served on June 3, 2026. (Ross Decl. Ex. E, p. 46.) However, Defendants began to meet and confer with Plaintiff about a subsequent deposition on June 1, 2026. (Ross Decl. ¶ 1.) Thus, it seems like Plaintiff's responses to these SROGs are an after-the-fact justification for this request, rather than an inciting cause.

ii)

Four-Year Gap

Next, Defendants argue that a second deposition is necessary because substantial time has passed since Plaintiff's initial deposition. (Mot. for Leave, pp. 7:25-8:5.) Specifically, Defendants state that, "[t]he passage of significant time, combined with a party's claim that his condition has changed, is a well-recognized basis for good cause under section 2025.610." (Id. p. 8:1-3.) Defendants proposit to support this assertion with two citations: *Fairmont Ins. Co. v. Superior Court*, and *Beverly Hospital v. Superior Court*. (Id. p. 8:3-4.) However, neither of these cases stand for this assertion, as neither case addresses the issue of subsequent depositions. (*Beverly Hospital v. Superior Court* (1993) 19 Cal. App. 4th 1289, 1291; see also, *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal. 4th 245, 247.) Instead, these cases address the trial court's general discretion on matters of discovery. Given that Defendants have provided no direct case law on this point and have not cited any specific change in Plaintiff's claims, the Court does not find this argument convincing.

iii)

Deteriorating Health

Finally, Defendants argue that Plaintiff's deteriorating health establishes good cause for a subsequent deposition. Specifically, Defendants state, "Plaintiff cannot claim ongoing and

worsening neurological and neuropsychological deficits—and contend that he requires future treatment across eleven medical specialties—while simultaneously denying Defendant the right to question him about those very deficits under oath." (Mot. for Leave, p. 8:21-23.)

The Court's issue with this argument is that questions of fact about Plaintiff's worsening medical condition are more readily addressed by medical experts, not Plaintiff himself. Defendants preemptively argue that the questions they have for Plaintiff are matters unique to his personal knowledge. (Id. p. 9:17-19.) Defendants state, "Plaintiff's subjective experience of his current symptoms, his daily functional limitations, his personal assessment of his condition, and the factual bases for his expanded damage contentions—are not documented in medical records or interrogatory responses." (Id. p. 9:14-17.) The Court agrees, but only in part. Plaintiff's updated assessment of his daily functional limitations is relevant to the case at hand and is something only he could testify to. However, topics like his current symptoms or the assessment of his condition is something better left to experts.

Unfortunately, Defendants' requested topics for this deposition go beyond the scope of the narrow issue of Plaintiff's daily functional limitations. Defendants wish to discuss topics such as, "Plaintiff's current medical condition and treatment received since 2022; (b) Plaintiff's current subjective symptoms and functional limitations in daily life; (c) Plaintiff's employment history and functional capacity since 2022; and (d) the factual basis for Plaintiff's expanded damage contentions as reflected in his responses to Special Interrogatories, Set Two." (Id. p. 9:6-10.) Moreover, as discussed above, the Court does not find that Defendants have established good cause for a subsequent deposition.

Given that Defendants' request is so much broader than the Court feels is appropriate, the Court is tentatively inclined to DENY Defendants' request.

Alternatively, the Court may be inclined to allow for Plaintiff's deposition, but solely on the subject of Plaintiff's daily functional limitations, and potentially his employment history. Notably, this deposition would be limited to 1.5 hours. As Plaintiff points out in his Opposition, he has already been deposed for 5.5 hours. (Opp. p. 3:7-17.) Under CCP 2025.290(a), "[e]xcept as provided in subdivision (b), or by any court order, including a case management order, a deposition examination of the witness by all counsel, other than the witness' counsel of record, shall be limited to seven hours of total testimony." (CCP § 2025.290(a).) Thus, any time spent in deposition beyond this point would exceed the seven-hour statutory limit.

iv)

Addendum Analysis

The above represents this Court's analysis of the merits of this motion. However, the Court would also like to note that, on July 13, 2026, after this motion was initially filed, Plaintiff filed a Second Amended Complaint, alleging a new cause of action for negligent hiring retention and supervision. (SAC p. 1.) This amendment was made with leave of court. (Minute Order, 7/10/26.) However, on September 8, 2026, Plaintiff dropped this claim as to both Defendant Westfield Topanga Owner, LLC, and Defendant Westfield DDC, LLC. (Request for Dismissal, 9/8/26.) If Plaintiff has raised an entirely new cause of action, then Defendants are almost assuredly entitled to a subsequent deposition. However, the fact that this claim was dropped as to multiple Defendants suggests the issue might be moot. Given the timings of these filings, these procedural complications are not addressed in the motion itself. Thus, the Court intends to discuss these topics further with the parties at the hearing on this motion. The Court will reserve its ruling on this motion until then.

Conclusion

The Court TENTATIVELY DENIES Defendants' Motion for Leave to Take Subsequent Deposition of Plaintiff.

In the alternative, the Court GRANTS the motion but limits the deposition to the topics of Plaintiff's daily functional limitations and potentially his employment history. The duration of this deposition is also limited to 1.5 hours

IT IS SO ORDERED, Plaintiff TO GIVE NOTICE.

September 15, 2026

Judge of the Superior Court